



D. Non-Solicitation, Non-Circumvention & Limited Non-Compete (2-Year)

Purpose: Stops a vendor from going around Company to Company's properties or poaching Company's people.

- 1. Non-Solicitation / Non-Circumvention (2 years).** During the relationship and for **two (2) years** after, Subcontractor will not, directly or indirectly, solicit, contract with, perform work for, or accept work from any property-management company, property, owner, or client it was introduced to or performed work for through Company, for services of the type Company provides — nor otherwise circumvent Company to deal directly with such clients/properties.
- 2. Non-Recruitment (2 years).** For **two (2) years** after, Subcontractor will not solicit or hire Company's employees, staff, or other subcontractors met through Company.
- 3. Limited Non-Compete (optional — keep narrow).** For **two (2) years** after, Subcontractor will not provide the same trade services it performed for Company to competing turn/make-ready general contractors **within** _____ **miles** of the properties it serviced for Company. This is limited to that scope and geography and does not bar Subcontractor's general trade outside it.
- 4. Remedies.** Company may seek injunctive relief plus damages and reasonable attorneys' fees. An overbroad restriction may be reformed to the maximum enforceable scope (§ 15.51).
- 5. Consideration.** Subcontractor receives access to Company's confidential client information, goodwill, and paid Work Orders as consideration making these covenants ancillary to an otherwise enforceable agreement.

Subcontractor

Signature: _____
Printed name: _____ Title: _____
Company: _____ Date: _____